

22STCV22768 22STCV22768

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Case Number: 22STCV22768 Hearing Date: August 21, 2026 Dept: A

TENTATIVE RULING

AUGUST 21, 2026

MOTION FOR NEW TRIAL

Los

Angeles Superior Court Case # 22STCV22768

MP: Plaintiffs Estate of

Valentina Orellana Peralta, by and through her Successor-in-Interest, Soledad

Peralta; Soledad Peralta; and Juan Pablo Orellana Larenas

RP: Defendant City of Los Angeles

NOTICE:

The Court

is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is required and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice

may be given either by email at or by telephone at (818)

260-8412.

ALLEGATIONS:

Plaintiffs

Soledad Peralta and Juan Pablo Orellana Larenas are the parents of Valentina Orellana Peralta ("Decedent"). On

December 23, 2021, Decedent and Soledad Peralta were in Defendant Burlington

Stores Inc.'s ("Burlington") dressing room when they loud banging sounds. At the time of the loud noises, non-party Daniel Elena-Lopez ("Elena-Lopez") had entered the store and exhibited erratic,

violent behavior attacking patrons.

Defendant Los Angeles Police Department's ("LAPD") officers, including William Dorsey Jones, Jr. ("Officer Jones"), entered the store and discharged firearms at Elena-Lopez. Plaintiffs

claim that Officer Jones fired a patrol rifle within the course and scope of

his employment as an officer of Defendants City of Los Angeles ("City") and LAPD. They allege that one of the rounds ripped through the dressing room wall and struck Decedent, causing fatal injuries.

The

Complaint, filed July 14, 2022, alleges: (1) Wrongful Death (Negligence); (2) Wrongful Death (Negligence); and (3) Negligent Infliction of Emotional Distress.

On

November 8, 2024, the Court granted Burlington's motion for summary judgment. On December 4, 2024, the Court entered judgment in favor of Burlington and against Plaintiffs.

On March

17, 2025, Plaintiffs dismissed Officer Jones without prejudice from the Complaint.

RELEVANT

BACKGROUND:

The

matter proceeded as a jury trial in April and May 2026.

On June

10, 2026, the Judgment on Special Verdict After Jury Trial was entered. The jury found that Officer Jones was not negligent. As such, the Court entered judgment against Plaintiffs such that they shall take nothing from City.

MOTION

ON CALENDAR:

On July

7, 2026, Plaintiffs filed a Notice of Intent to Move for New Trial. On July 17, 2026, Plaintiffs filed a Motion for New Trial. On July 27, 2026, City filed an opposition. On August 3, 2026, Plaintiffs filed a reply.

LEGAL STANDARD:

C.C.P. §

657 states in relevant part:

The verdict may be vacated and any other decision may be modified or vacated, in whole or in part, and a new or further trial granted on all or part of the issues, on the application of the party aggrieved, for any of the following causes, materially affecting the substantial rights of such party:

1. Irregularity in the proceedings

of the court, jury or adverse party, or any order of the court or abuse of discretion by which either party was prevented from having a fair trial.

2. Misconduct of the jury; and

whenever any one or more of the jurors have been induced to assent to any general or special verdict, or to a finding on any question submitted to them by the court, by a resort to the determination of chance, such misconduct may be proved by the affidavit of any one of the jurors.

3. Accident or surprise, which

ordinary prudence could not have guarded against.

...

6. Insufficiency of the evidence

to justify the verdict or other decision, or the verdict or other decision is against law.

7. Error in law, occurring at the trial and excepted to by the party making the application.

When a new trial is granted, on all or part of the issues, the court shall specify the ground or grounds upon which it is granted and the court's reason or reasons for granting the new trial upon each ground stated.

A new trial shall not be granted upon the ground of insufficiency of the evidence to justify the verdict or other decision, nor upon the ground of excessive or inadequate damages, unless after weighing the evidence the court is convinced from the entire record, including reasonable inferences therefrom, that the court or jury clearly should have reached a different verdict or decision.

(C.C.P. § 657.)

ANALYSIS:

Plaintiffs

move a new trial on four grounds: (1) the jury never heard the LAPD's own conclusion—reached by its Chief of Police after a formal investigation that no reasonably trained officer in Officer Jones's position would have believed deadly force reasonable, and that every round he fired was "out of policy"—and the Court improperly excluded City's admission on this disputed issue under Evidence Code, § 352; (2) the jury was never told that Officer Jones's perception of a gun had to be reasonable, but CACI No. 441 let the jury excuse the shooting based on his stated perception, without deciding whether perceiving a gun (as opposed to a bike lock) was reasonable; (3) the defense sprang an undisclosed expert on Plaintiffs in the middle of trial—handing a City employee Plaintiffs' expert's trial testimony, having her run new shotgun testing during trial, and calling her to contradict him—which is forbidden by expert-disclosure statutes; and (4) the defense closing was laced with improper argument, which violated the Golden Rule. (Mot. at p.1.)

A. Exclusion

of LAPD's Out-of-Policy Findings and the Evidence Code § 352 Finding

Evidence

Code, § 352 states: "The court in its discretion may exclude evidence if its probative value is substantially outweighed by the probability that its admission will (a) necessitate undue consumption of time or (b) create substantial danger of undue prejudice, of confusing the issues, or of misleading the jury."

On April

28, 2025, the Court excluded former Chief Michael Moore's findings that Officer Jones's use of deadly force was "out of policy," along with related Use of Force Review Board Findings. (Faraj Decl., Ex. M [April 28, 2025 Minute Order at p.3].) At the hearing, the Court stated:

THE

COURT: Okay. So I understand your position. I appreciate everyone's argument. I know it's an important issue. But, ultimately, Chief Moore's report is not coming in, his admissions are not coming in without knowing what they're based upon.

I understand that you have the arguments that there might be exceptions under Sanchez. I don't ultimately know because it's hard to make a determination as to exactly what the chief relied upon ultimately making his conclusion.

If you're able to get him -- I mean, why he wasn't designated before, why in the past he wasn't deposed, I don't know. But that was for one of the six prior lawyers that came in. But we were geared up to try the case. We had a jury that were being -- was being voir dired and we were moving forward. And even then your firm was joining in, and that was two-plus weeks ago. And so I just -- in evaluating it and making a determination under 352 that I think that it's going to be too time-consuming, and it's also very problematic because we don't know, ultimately, what the chief made determinations on and what weight he gave and didn't give and what factors were considered and it just leads to too much speculation.

As to the Board of Police Commissioners, that, too, under 352 is too problematic for the Court because ultimately -- we also had a split decision here where you had dissenting opinion with regard to whether or

not something was in policy or out of policy. And I understand your view that it's an admission by the agency, but it doesn't preclude you from presenting the policies and arguing to the jury that he's out of policy with regard to this.

And I know that there's a curative instruction with regard to a jury instruction, but I think in this particular case, it becomes too time-consuming and trying, ultimately an ancillary issue because it's for the jury to make the ultimate determination if something was in violation of the law or not. The law being the important aspect is that the policies and procedures come before the jury to independently evaluate it, and the conclusions of the Police Commissioner's -- what he's saying as an entity, the entity is made up of individuals, and perhaps if they were on a witness list to be able to testify as to what went into their conclusions and what ultimately may or may not change their mind for the jury to consider, that would be one thing, but I think it's a shortcut to try to -- which is problematic in this particular case. Under 352, I would not be of the -- I would not be allowing -- give me one quick moment.

And so that's the Court's ruling on that. I'm not precluding you from arguing to the jury that they can find that they didn't meet the policy but not to utilize the determinations of the Police Commissioner or the chief.

MR. GUNNING: I understand the Court's ruling.

(Faraj
Decl., Ex. A [April 28, 2025 Transcript at pp.41-43].)

Plaintiffs

argue that the central issue was whether Officer Jones acted as a reasonable officer would have based on LAPD policies, training bulletins, and police-practice experts. Plaintiffs' expert Richard Bryce (a former undersheriff) testified he violated standard training and his use of force was "out of policy," while the defense presented Robert Handy (a former chief of police) who opined he acted consistently with training and industry standards. Plaintiffs argue they should have been able to respond with Chief Moore's own final findings because he found that Officer Jones's "Use of Lethal Force, all rounds, to be Out of Policy, Administrative Disapproval." (Faraj Decl., Ex. L [Chief

Moore's Oct. 24, 2022 Report at p.38].) Plaintiffs argue that the report involved LAPD's own adjudication of its officer's conduct and that City previously conceded that its use-of-force policies were admissible and Chief Moore's out-of-policy findings may be a party admission not excluded by the hearsay rule (Faraj Decl., Ex. N [Def.'s April 23, 2025 Suppl. Brief re Chief Moore's Letter]).

While

City conceded that Chief Moore's letter and the Board of Police Commissioner's ("BOPC") Report were not excluded by the hearsay rule, City argued that Evidence Code, § 352 nevertheless applied because Chief Moore's investigative report provided recommendations and was not an adoption on City's behalf, and the BOPC was LAPD's and City's final policy-maker and arbiter, such that the report's probative value was outweighed by Defendants' prejudice and jury confusion. (See Def.'s April 23, 2025 Suppl. Brief re Chief Moore's Letter at p.8.)

Plaintiffs argue that the Court should not have excluded the findings because they were "powerful proof on a central issue." (Mot. at p.4.) City contends that Plaintiffs seek to use the LAPD administrative determinations as an expert, rather than employer, opinion, instead of allowing the jury to make such determinations.

This is

not the first time Plaintiffs' arguments have been made to the Court. The Court amply discussed this issue through briefings, supplemental briefings, and orally at hearings. (See Rocawich Decl., Ex. A [April 21, 2025 Transcript]; Ex. F [Pl.'s April 22, 2025 Suppl. Brief re BPC Report and Chief Moore's Letter]; Ex. G [April 22, 2025 Transcript]; Ex. H [April 28, 2025 Transcript]; Ex. I [August 15, 2025 Transcript].) The Court understood the issue's importance but ultimately exercised its discretion to exclude the evidence on the grounds that it would be time-consuming and the foundation of Chief Moore's determinations were unknown (whether it was based on his training, education, and experience such as an expert as opposed to his role as chief; the weight he gave or did not give, what factors were considered, etc.). (April 28, 2025 Transcript at pp.22-24, 41-43.) (The Court also noted that Chief Moore had not been deposed. Defense counsel Denise Lynch Rocawich provides emails showing that her office offered two deposition dates for August 2024 and followed-up on whether a deposition was necessary, but Plaintiffs never responded. [Rocawich Decl., Ex. A [June 27 and July 5, 2024 Emails].) Further, Chief Moore was not designated as an expert, non-retained or otherwise.

By excluding

the evidence, the Court did not preclude Plaintiffs from presenting their case and arguments regarding whether Officer Jones used deadly force and if such force was out of policy. As noted above,

Plaintiffs were able to present the policy at trial, as well as their own expert to opine on whether Officer Jones acted within or out of policy. The exclusion of Chief Moore who was never designated as an expert nor ever deposed the Court believes was not erroneous, this is particularly true given that it is not the Chief of the Los Angeles Police Department who determines if a use of force is within policy or not, but rather the civilian Police Commission.

The Chief of Police is responsible for determining punishment if a Los Angeles Police Officer is found out of policy.

The Court does not find that there was an irregularity in the proceedings which prevented Plaintiffs from having a fair trial or that a new trial is warranted on this basis.

B. Use
of CACI No. 441

CACI No.
441 states in relevant part:

[Name
of defendant]'s use of deadly force was necessary to defend human life only if a reasonable officer in the same situation would have believed, based on the totality of the circumstances known to or perceived by [name of defendant] at the time, that deadly force was necessary

(CACI No.
441.)

Penal

Code, § 835a(a)(4) states that the "decision by a peace officer to use force shall be evaluated from the perspective of a reasonable officer in the same situation, based on the totality of the circumstances known to or perceived by the officer at the time, rather than with the benefit of hindsight, and that the totality of the circumstances shall account for occasions when officers may be forced to make quick judgments about using force."

CRC Rule

2.1050(f) states in relevant part: “Use of the Judicial Council instructions is strongly encouraged. If the latest edition of the jury instructions approved by the Judicial Council contains an instruction applicable to a case and the trial judge determines that the jury should be instructed on the subject, it is recommended that the judge use the Judicial Council instruction unless the judge finds that a different instruction would more accurately state the law and be understood by jurors.”

The jury

instruction stated in relevant part: “Officer WILLIAM JONES, JR.’s use of deadly force was necessary to defend human life only if a reasonable officer in the same situation would have believed based upon the totality of the circumstances known to or perceived by WILLIAM JONES, JR. at the time, that deadly force was necessary....” (May 7, 2025 Jury Instructions at p.21 [re CACI 441]; Faraj Decl., Ex. G [April 27, 2026 Transcript at 18:12-18].)

Plaintiffs

objected to the instruction, arguing that without clarification, the jury could take “what he [the officer] says he perceived” as fixed, whether his perception was reasonable or not. Plaintiffs’

counsel argued that if the officers used phrases like “based on my perception,” then a jury may be convinced that is what the officer truly perceived and the instruction could lead the jury to a verdict that does not apply the reasonable standard. (Faraj Decl., Ex. G [April 27, 2026 Transcript at p.17].) Plaintiffs

sought to add into or after the instruction a sentence that Officer Jones’s perception of the circumstances be judged from the perspective of a reasonably careful officer. (April 27, 2026

Transcript at 18:27-19:6, 20:10-19.) Defendants

argued that the “reasonable officer standard” was inculcated through CACI No. 441, that they would argue that a reasonable officer would have perceived it one way under the totality of the circumstances while Plaintiffs would argue the exact opposite, and that inserting it into the instruction would be inappropriate. (Id. at 19:12-21,

20:3-9.) The Court declined to change

vetted and reviewed jury instructions absent extraordinary circumstances and found that CACI No. 441 as drafted was sufficient to cover the situation the parties were dealing with. (Id.

at 20:20-26.)

Plaintiffs

argue the Court's decision was error because clarification was necessary pursuant to basic negligence law regarding what a reasonably careful person would have perceived and done (not what Officer Jones subjectively thought). Plaintiffs argue that while CACI No. 441 borrows the Penal Code's "known to or perceived by" phrase, this must still be evaluated from the perspective of a reasonable officer in the same situation. Plaintiffs further claim that Defendants used the instructional gap in their closing to argue that the phrase "known to or perceived" did not mean that the perpetrator had to have a gun, but that it was about the perception the officer had. (Faraj Decl., Ex. J [May 5, 2026 Transcript at 52:26-53:3].)

More

fully, defense counsel reviewed the instructions with the jury as follows:

AGAIN, KNOWN TO OR
PERCEIVED.

IT DOESN'T MEAN THAT HE HAD TO HAVE
A GUN IN ORDER FOR A SHOOTING TO BE APPROPRIATE AND ALL SHOTS THEREAFTER.

IT'S THE PERCEPTION THAT THE OFFICER HAS; WAS IT A
REASONABLE PERCEPTION BASED UPON THE TOTALITY OF THAT INFORMATION.

(May 5,
2026 Transcript at 52:25-53:3.)

Again,

this was an argument the parties previously presented and argued. The Court previously determined and presently concludes that CACI No. 441's language needed no modification adding an additional use of the term "reasonable."

CACI No. 441 unambiguously tasked the jury to determine if Officer Jones' use of deadly force was based on a "reasonable officer" in the same situation who would have believed that deadly force was necessary; the standard of reasonableness sought by the Plaintiff, not disputed by the defense and required by law was already built into the instruction. Whether Officer Jones's perception that the bike lock was a firearm and whether such belief was reasonable is incorporated into the language in CACI No. 441. The parties were each able to provide guidance to the jury on CACI No. 441's

application and each side argued their position regarding whether Officer Jones's perception, at the time based on the totality of circumstances, warranted the use of deadly force. This included the timeline of events, whether or not Jones heard information concerning gunshots or a bike lock relayed from his vehicle's radio prior to exiting, and whether he believed someone had been shot in the head, etc. (See e.g., May 5, 2026 Transcript at 57:26-59:17.) As quoted above, in the May 5, 2026 transcript, defense counsel even reminded the jury to evaluate whether Officer Jones had a "reasonable perception" based on the totality of the circumstances.

The Court finds that Plaintiffs' arguments based on the CACI No. 441 jury instruction does not meet the standards to justify a new trial under C.C.P. § 657.

C. Defendants'
Expert Jennifer O'Connor

C.C.P. § 2034.310
states:

A
party may call as a witness at trial an expert not previously designated by that party if either of the following conditions is satisfied:

(a)
That expert has been designated by another party and has thereafter been deposed under Article 3 (commencing with Section 2034.410).

(b)
That expert is called as a witness to impeach the testimony of an expert witness offered by any other party at the trial. This impeachment may include testimony to the falsity or nonexistence of any fact used as the foundation for any opinion by any other party's expert witness, but may not include testimony that contradicts the opinion.

(C.C.P. §
2034.310.)

At trial,

Plaintiffs presented reconstruction expert Scott Roder and, in response, Defendants provided LAPD criminalist Jennifer O'Connor's shotgun-through-the-wall testing to contradict Mr. Roder. Plaintiffs contend Ms. O'Connor's rebuttal designation was limited to the scene, bullet flight paths, the positions of Officer Jones and Ms. Peralta, and distance, but Defendants never disclosed her as an expert on firearms testing or shotgun pellets striking drywall. (Mot. at p.9; see Pl.'s Objection to Surprise Expert Witness, filed April 22, 2026; Rocawich Decl., Ex. M [Pl.'s Suppl. Brief, Objection and Motion to Exclude LAP Employee and Non-Retained Expert Jennifer O'Connor, filed April 24, 2026].)

In opposition, Defendants argue that Plaintiffs had Ms. O'Connor's ballistics reports about two years prior to trial, which she signed as "J. Dorrel" (her maiden name at that time). (Rocawich Decl., ¶16.) City acknowledges they mistakenly identified their expert as "Joseph" rather than "Jennifer Dorrel O'Connor," but that she appeared on City's witness list at least a year prior to trial. (Id.) They argue that even though Plaintiffs noticed "Joseph Dorrel's" deposition, they did not follow through with the deposition. (Opp. at p.14.)

On April 23, 2026, the Court and the parties discussed Ms. O'Connor's test reports and whether they were turned over. (Faraj Decl., Ex. F [April 23, 2026 Transcript].) Defense counsel represented that Ms. O'Connor's report was not attached to the expert designation, but that it was provided during discovery, and that it was clear she was the analyst responsible for overall structuring, doing shooting reconstruction, and the bullet path trajectory analysis. (Id. at p.7.) He stated that while she was not listed in the exchange of experts, but was listed in their supplemental rebuttal designation (as Ms. Dorrel, now O'Connor) when Mr. Roder was listed. (Id. at pp.7-9.)

On April 24, 2026, the Court exercised its discretion to allow Ms. O'Connor's testimony with regard to the crime scene and trajectory, finding that so long as her rebuttal testimony was limited as provided by code and fell within the statute, it would be permissible to impeach Mr. Roder's incorrect factual assumptions about the case. (Rocawich Decl., Ex. P [April 24, 2026 Transcript at pp.65-66.] The Court limited Ms. O'Connor's opinions as it may attack Mr. Roder's

opinions and be more than demonstrative, such that certain exhibits and testimony topics would be excluded. (Id. at pp.67-76.)

Defendants

argue that Mr. Roder provided opinions on if the buckshot assumed to be in the other officer's shotgun was fired directly at the wall at the same distance as the officer's AR-15, he would not expect it to penetrate both layers of the drywall and still be lethal; and the shotgun pellets might not penetrate a second layer of drywall. (Rocawich Decl., Ex. V [April 9, 2026 Transcript at 117:4-9, 118:15-28].) On April 9, 2026, when asked if he knew the type of buckshot ammunition used, Mr. Roder stated it depended on the distance, regardless of the ammunition or buckshot grain; and when asked if he was familiar with Controflite ammunition for a buckshot, he stated he was not familiar with Controflite ammunition.

(April 9, 2026 Transcript at 41:23-44:8.) On April 30, 2026, Ms. O'Connor states that the duty ammo that would have been in the shotgun was the Federal Premium Tactical 12-Gauge Flitecontrol Double-Aught Buck with nine pellets. (Rocawich Decl., Ex. N [April 30, 2026 Transcript at 110:25-28].) Thus,

Defendants argue that Ms. O'Connor's rebuttal testimony did not express competing opinions regarding wall penetration, but was directed to Mr. Roder's incorrect factual premise and foundation underling his expert opinions. (Opp. at p.15.)

The fact

that Ms. O'Connor was not initially designated as an expert is not determinative on whether she can testify at trial. As stated in section 2034.310, non-designated expert is permitted where the expert is called for impeachment testimony, so long as the other party's witness's testimony is not contradicted. Here, the bounds of Ms. O'Connor's testimony did this. Furthermore, as a section 2034.310 witness, the Court was careful in limiting Ms. O'Connor's testimony and the exhibits that could be admitted at trial (by excluding some and narrowing what portions could be presented).

(See e.g., April 24, 2026 Transcript at pp.67-76; April 30, 2026 Transcript at 132:19-22, 135:18-19, 136:24-28, 139:13-26.)

As such, this basis does not support granting the motion.

D. Defense

Counsel's Closing Arguments

Plaintiffs

argue that Defendants' closing arguments forced Plaintiffs to object seven times with the Court to sustaining five of the seven objections, strike two arguments, instruct the jury twice and give curative instructions, and admonished defense counsel, such that defense counsel engaged in misconduct amounting to irregularity in the proceedings.

First, on

May 4, 2026, the Court struck defense counsel's reference to and sustained Plaintiffs' objection to Elena-Lopez's potential drug use. (Faraj Decl., Ex. I [May 4, 2026 Transcript at 68:26-69:6].)

Second, the Court sustained Plaintiffs' objections to defense counsel's reference to Plaintiffs' request for \$100 million in their mini opening. (Id. at 80:17-19, 84:20-27.) Third, the Court sustained Plaintiffs'

objections to defense counsel's statement regarding who Officer Jones was as a person, since he was not on trial and the issue was whether he was not negligent. (Id. at 82:4-12,

85:1-6.) Fourth, Plaintiffs cite to

defense counsel's speculation on had the Peraltas been taken as hostages or if Elena-Lopez had started beating them (id. at 124:28-125:6), but there is no showing that Plaintiffs objected to these statements or that the Court otherwise excluded them.

Fifth, on

May 5, 2026, defense counsel asked if Elena-Lopez was someone the jury would want to invite over the weekend to a kid's birthday or watch over our parents, to which Plaintiffs' counsel objected based on the Golden Rule and that the Court sustained the objection, struck the argument, and instructed the jury to disregard. (Faraj Decl., Ex. J [May 5, 2026 Transcript at 50:17-51:11].)

Preliminarily,

Defendants argue that the motion must be denied because Plaintiffs did not comply with C.C.P. § 658 and failed to provide supporting affidavits to support their argument that defense counsel's closing statements caused an irregularity in the proceedings. "When the application is made for a cause mentioned in the first, second, third and fourth subdivisions of Section 657, it must be made upon affidavits; otherwise it must be made on the minutes of the court."

(C.C.P. § 658.) Plaintiffs provided counsel Haytham Faraj's declaration in support of the motion, which consists of five paragraphs authenticating documents. The documents in large part include transcripts of the court hearings. Transcripts are sufficient as Plaintiffs may rely on the minutes, including the report of proceedings taken by a court reporter. (See C.C.P. § 660(a).)

Next,

Defendants argue "it appears to be well-established law that the 'misconduct of an attorney is not a ground for reversal where the other party, even though objecting to the remarks, fails to request that the jury be charged to disregard them.'" (Houser v. Bozwell (1947) 80 Cal.App.2d 702, 707 [stating that though no request was made, the trial court gave numerous instructions to the jury not to consider as evidence counsel's statements made during trial, and counsel's argument and the trial court's instructions did not prejudice the appellants' cause].) As stated in Rayii v. Gatica (2013) 218 Cal.App.4th 1402, 1411–1412:

Attorney

misconduct is a ground for a new trial [citation]. [Citation.] Attorney misconduct can justify a new trial only if it is reasonably probable that the party moving for a new trial would have obtained a more favorable result absent the misconduct. [Citations.]

A

party ordinarily cannot complain on appeal of attorney misconduct at trial unless the party timely objected to the misconduct and requested that the jury be admonished. [Citation.] The purpose of these requirements is to allow the trial court an opportunity to remedy the misconduct and avoid the necessity of a retrial; a timely objection may prevent further misconduct, and an admonition to the jury to disregard the offending matter may eliminate the potential prejudice. [Citations.] The failure to timely object and request an admonition waives a claim of error unless the misconduct was so prejudicial that it could not be cured by an admonition [citations], an objection or request for admonition would have been futile [citation] or the court promptly overruled an objection and the objecting party had no opportunity to request an admonition [citation]. Attorney misconduct is incurable only in extreme cases. [Citations.]

(Rayii

v. Gatica (2013) 218 Cal.App.4th 1402, 1411–1412 [citation omitted].)

With

respect to the fourth cited matter (re hostages/beatings in the May 4, 2026 Transcript at 124:28-125:6), the Court notes that Plaintiffs did not raise objections such that objections to this language were waived.

With

respect to the second and third cited matters, the Court sustained the objections, but was not further asked to admonish the jury or instruct them to disregard matters. The Court addressed the objections immediately in order to remedy any attorney misconduct and to avoid the necessity of a retrial. The Court also finds that Plaintiffs have not established whether it is reasonably probable that they would have obtained a more favorable result absent defense counsel's mention of Plaintiffs' \$100 million demand in their mini-opening or their brief statements regarding "That's who Officer Jones is."

With

respect to the first cited matter, Defendants argue that their reference to Elena-Lopez's potential drug use was a reiteration of Plaintiffs' counsel's questioning of Bryce. Indeed, counsel asked if he knew that Elena-Lopez was under the influence of drugs and in an altered state, to which he responded in the affirmative; it does not appear that any objections were made to this testimony at that time. (See Rocawich Decl., Ex. Q [April 14, 2026 Transcript at 84:17-22].) Again, Plaintiffs have not established how they would have been entitled for a more favorable result had defense counsel not reiterated this point.

With

respect to the fifth cited matter (Golden Rule objection), Plaintiffs argue that Defendants previously filed an unopposed motion in limine to prevent Golden Rule/reptile arguments, yet they asked if Elena-Lopez was the type of person jurors would want to invite. (Faraj Decl., Ex. M.) Plaintiffs argue that defense counsel's misconduct was deliberate and heightened by timing in closing arguments as it reframed the negligence question as a community-protection and personal-safety question. (Mot. at p.12.)

While the

Court understands Plaintiffs' arguments, the Court also addressed this immediately at the hearing by sustaining Plaintiffs' counsel's objection, striking the argument, and instructing the jury to disregard them. Furthermore, defense counsel did not ask the jurors to put themselves in the shoes of Plaintiffs, any bystanders, Elena-Lopez, or Officer Jones at the time of the subject incident. As argued by Defendants, defense counsel asked the jury to evaluate the character and dangerousness of the suspect based on the evidence, and directed them to the factual circumstances that existed at the time of the shooting and not on the consequences of jury's verdict (or whether the jury/community was at risk for purposes of the reptile theory). (Opp. at pp.18-19.) The Court does not find that defense counsel's comment was so incurable or prejudicial, or that it was not timely addressed during the trial, such as to warrant a new trial.

For these

reasons, the motion for new trial is denied.

RULING:

In the

event the parties submit on this tentative ruling, or a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court's records.

ORDER

Plaintiffs

Motion for New Trial came on regularly for hearing on August 21, 2026, with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as follows:

THE MOTION FOR NEW TRIAL IS DENIED.

DEFENDANT CITY OF LOS ANGELES TO GIVE NOTICE.

IT IS SO ORDERED